

FIRST ENDORSEMENT

Acting Executive Director Matthew Kadushin, Civilian Complaint Review Board, to Assistant Deputy Commissioner Nancy M. Slater, Department Advocate's Office, November 15, 2023. Contents noted. Recommend approval of the negotiated plea agreement in DADS No.2022-27476 against Lieutenant Erek Powers, Tax Registry No. 944907. The case was conferenced on October 17, 2023, before Assistant Deputy Commissioner of Trials Vanessa Facio-Lince who approved the negotiated penalty of a Command Discipline Schedule B and a forfeiture of Ten (10) vacation days, after Lieutenant Erek Powers accepted the findings and substantiation of the allegations contained in the Charges and Specifications dated December 12, 2022, and amended on October 13, 2023. Charges and Specifications are dismissed for plea purposes.

Matthew Kadushin

Matthew Kadushin
Acting Executive Director
New York City Civilian Complaint Review Board

APPROVED

MAR 15 2024
Edward A. Cab...
EDWARD A. C...
POLICE COMMISSIONER

**DISPOSITION OF CHARGES**

PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27476
BOOK & PAGE NO. Page 1 of 2
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, POWERS	FIRST EREK	M.I. J	COMMAND DET SQD. BKLYN NORTH-084
SHIELD NO. 00000	TAX REGISTRY NO. 944907	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2007	
RANK/NAME OF COMPLAINANT				COMMAND
DATE OF CHARGES		DATE TRIAL COMMENCED		DATE TRIAL CONCLUDED

TRIAL COMMISSIONER

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
1 . Lieutenant Erek Powers, on or about July 24, 2021, at approximately 0115, while assigned to 073 PCT and on duty in the vicinity of Atlantic Avenue and Rockaway Avenue, Kings County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force by stating in sum and substance, "You know you're really skinny right? You know I would hurt you? You wouldn't even survive, "without police necessity.	DISMISSED	B - COMMAND DISCIPLINE .00 - It is recommended that the Charges and Specifications be dismissed and that the matter be remanded to the Respondents command for imposition of a Schedule B Command Discipline with the forfeiture of the amount of vacation days as indicated. VACATION DAYS 10.00 - It is recommended that the Respondent forfeit the amount of vacation days as indicated.
2 . Lieutenant Erek Powers, on or about July 24, 2021, at approximately 0115, while assigned to 073 PCT and on duty in the vicinity of Atlantic Avenue and Rockaway Avenue, Kings County, was discourteous to § 87(2)(b) in that Lieutenant Erek Powers stated to § 87(2)(b) in sum and substance, "You might want to get your weight up before you start running your mouth," and "because you can't do anything," without police necessity.	DISMISSED	
3 . Lieutenant Erek Powers, on or about July 24, 2021, at approximately 0115, while assigned to 073 PCT and on duty, in the vicinity of Atlantic Avenue and Rockaway Avenue;	DISMISSED	

DC Brubaker
FIRST DEPUTY COMMISSIONER

1/5/24
DATE

POLICE COMMISSIONER'S APPROVAL☒ Approved☐ Disapproved☐ Other Action (Describe)

Edward A. Cab...
POLICE COMMISSIONER

3/15/24
DATE



DISPOSITION OF CHARGES
PD 468-142(Rev. 8-89)-2

CASE NO. 2022-27476
BOOK & PAGE NO. Page 2 of 2
PERSONNEL ORDER NO.

RANK/TITLE LT	SURNAME, POWERS	FIRST EREK	M.I. J	COMMAND DET SQD. BKLYN NORTH-084
SHIELD NO. 00000	TAX REGISTRY NO. 944907	SOCIAL SECURITY NO.	DATE APPOINTED 07/09/2007	
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TRIAL COMMISSIONER				

SPECIFICATION	DISPOSITION	RECOMMENDED PENALTY PLEA [X] TRIAL []
Kings County, abused his authority as a member of the New York City Police Department, in that he threatened § 87(2)(b) with the use of force by stating in sum and substance, "You know I will hurt you, right?" without sufficient legal authority.		
4 . Lieutenant Erik Powers, on or about March 17, 2022, at approximately 0905, while assigned to 073 PCT, provided an inaccurate statement to the Civilian Complaint Review Board in that after reviewing his original testimony he omitted material facts.	DISMISSED	
5 . Lieutenant Erik Powers, on or about March 17, 2022, at approximately 0910, while assigned to 073 PCT and in the vicinity of 100 Church Street, New York County, provided an inaccurate statement to the Civilian Complaint Review Board in that he provided inconsistent testimony with regard to threatening § 87(2)(b) with the use of force.	DISMISSED	

DC Brubio 1/5/24
FIRST DEPUTY COMMISSIONER DATE

POLICE COMMISSIONER'S APPROVAL

- ☒ Approved
☐ Disapproved
☐ Other Action (Describe)

Edward A. Cab... 3/15/24
POLICE COMMISSIONER DATE